



June 1, 2023

Senator Patrick McMath  
404 E Gibson Street, Suite 2  
Covington, LA 70433

Representative Jerome Zeringue  
Chairman of the House Committee on Appropriations  
423 Goode Street  
Houma, LA 70360

Representative Francis C. Thompson  
Vice Chair of the House Committee on Appropriations  
P. O. Box 68  
Delhi, LA 71232

**RE: Ad Trade Letter in Opposition to Louisiana SB 162**

Dear Senator McMath, Chairman Zeringue, and Vice Chair Thompson:

On behalf of the advertising industry, we oppose Louisiana SB 162.<sup>1</sup> We write to express our significant concerns with the proposed legislation and provide a non-exhaustive list of those concerns below.

We and the companies we represent, many of whom do substantial business in Louisiana, strongly believe consumers deserve meaningful privacy protections supported by reasonable government policies. However, as presently drafted, SB 162 raises significant First Amendment concerns for Louisiana minors and businesses alike, and it would also have negative effects on Louisiana minors by limiting the content and information available to them. **We therefore respectfully ask you to decline to advance the bill as presently drafted.**

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.<sup>2</sup> Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls.

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<sup>1</sup> Louisiana SB 162 (Reg. Sess. 2023), located [here](#).

<sup>2</sup> John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at [https://www.iab.com/wp-content/uploads/2021/10/IAB\\_Economic\\_Impact\\_of\\_the\\_Market-Making\\_Internet\\_Study\\_2021-10.pdf](https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf).

**I. The bill imposes unconstitutional restraints on access to information by Louisiana minors.**

By flatly banning *any form of advertising* to Louisiana minors through their social media accounts, with zero exceptions, SB 162 is overinclusive and therefore unconstitutional. All Americans, including Louisiana's minors, have a First Amendment right to receive truthful advertising. It is not clear what governmental interest SB 162's total prohibition on advertising to Louisiana minors purports to advance. Nor can a total ban without exceptions be narrowly tailored to advance any objective.<sup>3</sup> Simply put, the bill's complete prohibition on the display of advertising to a Louisiana minor account holder violates Louisiana minors' First Amendment right to receive lawful information.

**II. The bill also imposes unconstitutional restraints on the lawful commercial speech of businesses and nonprofits.**

SB 162 impinges on the First Amendment rights of businesses and mission-driven nonprofits to communicate their lawful messages. Time and time again, courts have affirmed First Amendment protections for commercial speech such as advertising by making clear that consumers, businesses, and society overall have strong interests in the free flow of commercial information.<sup>4</sup> If enacted, SB 162 would prohibit myriad Louisiana businesses and nonprofits from reaching teenagers with their important messages, including churches, emergency assistance humanitarian organizations, housing organizations, and countless other charitable organizations.

**III. The broad sweep of the bill would limit Louisiana minors' ability to access important information online.**

Outlawing advertising to Louisiana minors would prevent Louisiana teenagers from reaching a wealth of information and content that otherwise would be at their fingertips. SB 162 would treat a Louisiana 7-year-old the same as a 15-year-old. A one-size-fits-all approach would disadvantage both of these age groups by failing to account for the significant differences between these groups in terms of their use of the Internet. The bill's ban would hamper older minors' growth by limiting access to information and resources that could be foundational to their maturation, development, and education. Depriving older minors of the Internet's vast benefits will not offer them meaningful protections but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states.

**IV. The bill could unintentionally expose Louisiana minors to harm.**

The bill's age-gating requirements could effectively force companies to maintain databases of Louisiana minors' ages to prevent them from creating or accessing social media accounts. Such

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<sup>3</sup> *Central Hudson Gas & Elec. Corp. v. Public Service Commission of New York*, 447 U.S. 557, 564-66 (1980).

<sup>4</sup> See, e.g., *Va. Pharmacy Bd. v. Va. Consumer Council*, 425 U.S. 748, 756-57 (1976); *Sorrell et. al. v. IMS Health Inc.*, 564 U.S. 552, 570-71 (2011).



an outcome could be an attractive target for a nefarious individual or party to seek information about minors.

While we agree with protecting Louisiana minors online, SB 162 would do the opposite while imposing a severe, unnecessary, and unconstitutional restriction on advertising. We urge you to defend the constitutional rights of Louisiana businesses and minors, and we encourage you to take steps to ensure Louisiana teens can continue to participate in the digital economy. We ask you to decline to advance SB 162 as presently drafted. We would welcome a meeting with you to further explain our concerns with the proposed legislation.

\* \* \*

Thank you for your consideration of this letter.

Sincerely,

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